

23STCV02597 23STCV02597

County: los-angeles

Division: Civil Law and Motion

Department: 517

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Case Number: 23STCV02597 Hearing Date: September 17, 2026 Dept: 517

On February 18, 2026 Plaintiff LA Metropolitan Development Corporation ("LAMDC") moved to compel the depositions of Defendants Matt Kim ("Kim") and David Park ("Park"). The next day, LAMDC moved to compel the deposition of Defendant Jonathan Pae ("Pae"). The Court heard both motions on July 8, 2026. The Court denied the motions as moot with respect to compelling depositions because, as of the hearing date, Kim, Park, and Pae all had been deposed. In short, there were no depositions to compel. The Court continued the hearing on the motions to September 17, 2026 to consider LAMDC's requests in the motions for monetary sanctions in the form of the attorney's fees and costs that LAMDC said it incurred in connection with the motions. That the depositions had been conducted prior to the July 8, 2026 hearing date did not moot the sanctions request.

Having considered the matter, the Court is awarding LAMDC \$6,370.40 for attorney's fees and costs incurred in connection with the motion as to Kim and Park and \$3,505 in connection with the motion as to Pae. Those figures reflect what LAMDC sought in the respective motions. Monetary sanctions are warranted. It took the filing of the motions to get the depositions to happen. There is no substantial justification for the Defendants' actions that caused LAMDC to have to file the motions. Nor would injustice result from the imposition of monetary sanctions. Further, the amount of the fees and costs that LAMDC requested in the motions is supported by the declaration of LAMDC's counsel David Luu. The amounts strike the Court as reasonable under the circumstances.

The sanction of \$6,370.40 for attorney's fees and costs incurred in connection with the motion as to Kim and Park is imposed jointly and severally on Kim, Park, and their counsel Matthew Harrisoin. The sanction of \$3,505 in connection with the motion as to Pae is imposed jointly and severally on Pae and his counsel Harrison. The sanctions amounts shall be paid to LAMDC within 60 days of this order.